

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO.: NAME: FIRM NAME: STREET ADDRESS: CITY: ZIP CODE: TELEPHONE NO.: FAX NO.: E-MAIL ADDRESS: ATTORNEY FOR (name):	
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: MAILING ADDRESS: CITY AND ZIP CODE: BRANCH NAME:	
CASE NAME:	
CUSTODY ORDER—JUVENILE—FINAL JUDGMENT	

CASE NUMBER:
 JUVENILE:
 FAMILY (existing, if
 one; otherwise, new):

Date of hearing:	Dept.:
Judicial officer (name):	

THE COURT FINDS AND ORDERS

1. a. **Jurisdiction.** This court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act (Fam. Code, §§ 3400–3465).
- b. **Notice and opportunity to be heard.** The parties were given notice and an opportunity to be heard as provided by the laws of the State of California.
- c. **Country of habitual residence.** The country of habitual residence of the child or children in this case is
☐ the United States ☐ other (specify):
- d. **Penalties for violating this order.** If you violate this order, you may be subject to civil or criminal penalties or both.

2. Parents bound by this order.

- | | | |
|-----------------|---------------------------------|---------------------------------|
| a. Name: | ☐ Mother | ☐ Father |
| b. Name: | ☐ Mother | ☐ Father |
| c. Name: | ☐ Mother | ☐ Father |

are the parents of the children listed in item 3.

Parents ☐ are ☐ are not married to each other.

Parents ☐ do ☐ do not reside together.

3. Custody.

Custody of the minor children is ordered as follows:

<u>Child's name</u>	<u>Date of birth</u>	<u>Legal custody to (name):</u>	<u>Physical custody to (name):</u>	<u>Primary residence with (name):</u>
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☐ Additional children listed on Attachment 3.

4. ☐ This order reflects a change in the physical custody of the child or children to the custody of a formerly noncustodial parent.

CASE NAME:	CASE NUMBER:
	JUVENILE:
	FAMILY:

5. ☐ **Visitation (parenting time) of (name of parent):**
 This parent may spend time with the children as follows:
☐ All children listed in item 3 ☐ The following children (name each):
- a. ☐ As arranged by the parents, but no less than (minimum): hour(s), times per (time period): .
- b. ☐ As stated on the attached [form JV-205](#).
- c. ☐ No visitation is ordered for the reasons stated ☐ on the attached [form JV-206](#) ☐ on Attachment 5c.
6. ☐ **Visitation (parenting time) of (name of parent):**
 This parent may spend time with the children as follows:
☐ All children listed in item 3 ☐ The following children (name each):
- a. ☐ As arranged by the parents, but no less than (minimum): hour(s), times per (time period): .
- b. ☐ As stated on the attached [form JV-205](#).
- c. ☐ No visitation is ordered for the reasons stated ☐ on the attached [form JV-206](#) ☐ on Attachment 6c.
7. ☐ **Child abduction prevention.** There is a risk that one parent will take the children out of California without the other parent's permission. *Child Abduction Prevention Order Attachment* ([form FL-341\(B\)](#)) is attached and must be obeyed.
8. ☐ **Change of residence.** Under Family Code section 3024, unless there is prior written agreement to the change, any parent planning to change the residence of the child(ren) for longer than 30 days must provide notice to the other parent(s) at least 45 days before the proposed change to the extent feasible to allow time for mediation of a new plan.
9. ☐ **Parentage (attach court order).** (Name): _____ was declared or adjudged
 the ☐ biological ☐ presumed parent of (names of children): _____
 by court order (specify county and case number):
☐ juvenile court ☐ family court ☐ other (specify): _____
 on (date): _____
☐ Additional parentage determination(s) and order(s) listed on Attachment 9.
10. ☐ **Additional physical custody provisions.** The parents will follow the physical custody provisions listed in the schedule
☐ on Attachment 10.
☐ on *Visitation (Parenting Time) Order—Juvenile* ([form JV-205](#)).
☐ on *Additional Provisions—Physical Custody Attachment* ([form FL-341\(D\)](#)).
11. ☐ **Holiday schedule.** The children will spend holiday time as listed in the schedule
☐ on Attachment 11.
☐ on *Children's Holiday Schedule Attachment* ([form FL-341\(C\)](#)).
12. ☐ **Joint legal custody.** The parents will share joint legal custody as listed in the plan
☐ on Attachment 12.
☐ on *Joint Legal Custody Attachment* ([form FL-341\(E\)](#)).

CASE NAME:	CASE NUMBER:
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	FAMILY:

13. ☐ **Other findings and orders** (including circumstances underlying any limits on custody or visitation at the time of the order):

- ☐ Continued on the attached [form JV-206](#).
☐ Continued on Attachment 13.

NOTICE

The juvenile court has terminated jurisdiction over the children listed in 3.

All requests for modification or termination of these orders must be brought in the family court case in which these orders are filed.

14. a. ☐ A criminal protective order on [form CR-160](#) relating to the parties in this case is currently valid and in effect in case number (specify):
in (specify court, if known):
The order is scheduled to expire on (expiration date):
- b. ☐ A Domestic Violence Prevention Act protective order on form [DV-110](#), [DV-116](#), [DV-130](#), or [DV-730](#) relating to the parties in this case is currently valid and in effect in case number (specify):
in (specify court, if known):
The order is scheduled to expire on (expiration date):
- c. ☐ A restraining order (form [JV-250](#), [JV-255](#), or [JV-257](#)) is attached.

Instruction for Law Enforcement

Conflicting Orders—Priorities for Enforcement.

If more than one restraining order has been issued protecting the protected person from the restrained person, the orders must be enforced in the following order (see Pen. Code, § 136.2, and Fam. Code, §§ 6383(h)(2), 6405(b).):

1. **EPO:** If one of the orders is an *Emergency Protective Order* ([form EPO-001](#)) and it is more restrictive than other restraining or protective orders, it has precedence in enforcement over all other orders.
2. **No-Contact Order:** If there is no EPO, a no-contact order that is included in a restraining or protective order has precedence in enforcement over any other restraining or protective order.
3. **Criminal Order:** If none of the orders includes a no-contact order, a domestic violence protective order issued in a criminal case takes precedence in enforcement over any conflicting civil court order. Any nonconflicting terms of the civil restraining order remain in effect and enforceable.
4. **Family, Juvenile, or Civil Order:** If more than one family, juvenile, or other civil restraining or protective order has been issued, the one that was issued last must be enforced.

Date:

JUDICIAL OFFICER OF THE JUVENILE COURT

(See reverse for transmittal and filing instructions.)

CASE NAME:	CASE NUMBER:
	JUVENILE:
	FAMILY:

15. The (*check one*): ☐ clerk of the juvenile court ☐ parent given physical custody ☐ parent's attorney ☐ county counsel is directed to transmit this order within 10 calendar days to the clerk of the superior court in any county where a proceeding described in rule 5.700(a)(1) involving the child or children is pending or, if no such case exists, to the clerk of the court in (*specify jurisdiction*):
which is (*in order of preference*):
- ☐ the county where the parent who holds sole physical custody resides.
- ☐ the county where the child's or children's primary residence is located (*if no parent holds sole physical custody*).
- ☐ a county or location where a parent resides.
- ☐ other(*name of jurisdiction*):

To the clerk of the receiving court:

16. Immediately on receiving this order, file the order as described in rule 5.475(a)(1) or 5.700(b) in a pending proceeding or a new file.
17. After filing the order, send an endorsed file-stamped copy of this order showing the case number assigned by your court by first-class mail to **the originating juvenile court** and:
- a. ☐ The parent in 2a (*name and mailing address*):
- b. ☐ The parent in 2b (*name and mailing address*):
- c. ☐ The parent in 2c (*name and mailing address*):
- d. ☐ Other (*name and mailing address*):

with a completed clerk's certificate of mailing (*see below*).

CLERK'S CERTIFICATE OF MAILING
(*To be completed by clerk of receiving court*)

I certify that I am not a party to this cause and that an endorsed filed copy of the foregoing order was mailed as follows: Each copy was enclosed in an envelope with postage fully prepaid. The envelopes were addressed to the originating court and to each person whose name and address are given in item 17. Each envelope was sealed and deposited with the United States Postal Service

at (*place*):

on (*date*):

Date: _____ Clerk, by _____, Deputy